

Avinash Kumar Gautam v. State of U.P.

Allahabad High Court · Single Judge · 16 July 2024 · 2024:AHC:115345 · Criminal Misc. Bail Application No. 25083 of 2024 · **Bail allowed on personal bond and two sureties.**

HEADNOTE

On a Prevention of Corruption Act bail application by a contractual computer operator of Paschimanchal Vidyut Vitaran Nigam, named in a trap over alleged demand to correct a residential electricity bill, the Allahabad High Court granted bail. Chapter 6 of the U.P. Electricity Supply Code, 2005 provides a detailed mechanism for correction of bills; the AGA could not show that the applicant was authorised to correct the complainant's bill. Applying *Neeraj Datta*, recovery of Rs. 5,000 without a legal basis for demand did not, *prima facie*, make out sections 7, 13(1)(B) and 13(2). Guilt, and whether a contractual nigam employee is a public servant, were left open; the Court made no comments on the merits.

FACTUAL SUMMARY

Avinash Kumar Gautam, a computer operator engaged on contract with Paschimanchal Vidyut Vitaran Nigam, applied for bail in Case Crime No. 05 of 2024 under sections 7, 13(1)(B) and 13(2) of the Prevention of Corruption Act, 1988, Police Station Anti Corruption, Meerut. The FIR dated 1 May 2024 named him and co-accused Abhishek Chand Kaushik, an Executive Assistant in the same nigam. Complainant Neeraj Singh of Noida had a residential electricity connection with alleged billing irregularity. The prosecution case was that Kaushik demanded Rs. 5,000 to get the bill corrected; a trap on 30 April 2024 was said to have recovered that cash, with a chemical test also alleged against the applicant.

Counsel said the applicant only fed consumption bills and could not independently correct a bill without an order of the authority under the U.P. Electricity Supply Code, 2005, and that as a contractual employee he was not a public servant. Co-accused Kaushik had been enlarged on bail the same day. The applicant had been in jail since 1 May 2024; a charge-sheet had already been filed.

HOLDING-UNITS

INTERPLAY · UP-2005::6.5

Chapter 6 bill-correction mechanism — contractual bill-feeder not shown authorised to correct a bill

QUESTION

Where Chapter 6 of the Supply Code provides a detailed mechanism for correction of bills, and the prosecution cannot show that a contractual computer operator who only feeds bills was authorised to correct the complainant's bill, is bail to be granted on a Prevention of Corruption Act trap?

HOLDING

Yes, at the bail stage and without comments on the merits. The applicant, a contractual computer operator in Paschimanchal Vidyut Vitaran Nigam, was named in Case Crime No. 05 of 2024 under sections 7, 13(1)(B) and 13(2) of the Prevention of Corruption Act, 1988, over alleged demand and recovery of Rs. 5,000 to correct a residential electricity bill. Counsel said he could not independently correct a bill without an order of the authority under the Code. The Court held that Chapter 6 of the U.P. Electricity Supply Code, 2005 provides a detailed mechanism for correction of bills; the AGA could not point out that the applicant was authorised to correct the bill. Applying *Neeraj Datta*, there was *prima facie* no legal basis for the alleged demand, so no PC Act offence was made out at this stage. Bail was allowed on a personal bond and two sureties, with standard conditions. ¶ 5-6, 9-11

QUALIFIER

Prima facie, bail stage only; no comments on the merits of the prosecution.

FLAG The Court cited 'Chapter 6' for bill correction, not a clause number. Keyed to Clause 6.5 (the Code's billing-complaint / bill-correction channel used in this corpus); not Clause 6.7 (late-payment surcharge). Source PDF also contains the 05.07.2024 listing order (neutral citation 2024:AHC:115345) connecting this matter with Criminal Misc.

Bail Application No. 22586 of 2024; the operative grant is 16.07.2024. Para 9 recites co-accused load-enhancement facts (5 kW to 13 kW; competence up to 9 kW) copied from the reproduced Kaushik order, and a chemical test 'against' the applicant, while para 5 records counsel as saying the test was 'in the negative' — recorded as the order states it.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 On a Prevention of Corruption Act bail application by a contractual computer operator of Paschimanchal Vidyut Vitaran Nigam, named in a trap over alleged demand to correct a residential electricity bill, the Allahabad High Court granted bail. Chapter 6 of the U.P.. ¶ 5-6, 9-11

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — GUILT UNDER SECTIONS 7, 13(1)(B) AND 13(2) OF THE PREVENTION OF CORRUPTION ACT, 1988
Expressly left open: bail granted 'without making any comments on the merits of the case'. ¶ 9-10

NOT DECIDED — WHETHER A CONTRACTUAL EMPLOYEE OF PASCHIMANCHAL VIDYUT VITARAN NIGAM IS A 'PUBLIC SERVANT' UNDER THE PREVENTION OF CORRUPTION ACT, 1988
Raised by counsel (para 6), placing Khyali Singh Alias Harswaroop v. C.B.I.; the Court did not decide the point. ¶ 6, 9

NOT DECIDED — CORRECTNESS OF THE COMPLAINANT'S ELECTRICITY BILL, AND WHO IN THE NIGAM WAS COMPETENT TO CORRECT IT ON THE MERITS
Used only to test whether a demand could have a legal basis at the bail stage. The bill itself was not adjudicated. ¶ 5, 9

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Neeraj Datta v. State (NCT of Delhi)</i> 2022 Online SC 1724 Supreme Court (Constitution Bench)	As used here: mere recovery of money does not automatically attract the Prevention of Corruption Act; the ratio was held squarely attracted so that, absent a legal basis for the alleged demand, prima facie no offence under sections 7, 13(1) (B) and 13(2) was made out.		Court	Applied
<i>Sumit Subhashchandra Gangwal v. State of Maharashtra</i> 2023 LiveLaw (SC) 373 Supreme Court	Cited (paragraph 5) in the run of reasons for granting bail; the order does not extract the holding.		Court	Referred
<i>Khyali Singh Alias Harswaroop v. C.B.I.</i> Criminal Misc. Bail Application No. 3979 of 2024 (order dated 19.03.2024) Allahabad High Court	Placed for the applicant: a person who does not hold the power to fulfil the request (and, on those facts, was not a public servant) may be enlarged on bail in a Prevention of Corruption Act demand case.		Petitioner	Relied on
<i>Ramesh Balkrishna Kulkarni v. State of Maharashtra</i> (1985) 3 SCC 606 Supreme Court	Quoted in the reproduced Khyali Singh order: a 'public servant' is an authority appointed by Government or a semi-governmental body, in the pay of the same, discharging duties under government rules.		Petitioner	Referred

